

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 04/30/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10
Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02512
CASE NAME: JOSE REYNOSO VS. ERIC OTANI, MD
HEARING ON PETITION IN RE: APPROVAL OF COMPROMISE OF CLAIM
FILED BY: REYNOSO, JOSE
TENTATIVE RULING:

Plaintiff Jose Reynoso, by and through his Guardian Ad Litem Ma. Del Lourdes Hidalgo, brought this suit against Buenavista Group Homes, Inc. and Eric Otani, M.D. for dependent adult abuse, general negligence, and medical malpractice. The parties have resolved the matter, and now seek the Court's approval, as Plaintiff Reynoso is a disabled adult.

Background

Plaintiff Reynoso has cognitive developmental disabilities, dysphagia, gastritis and gastroduodenitis,

and partial epilepsy. He was a resident of Buenavista Group Homes on choking risk procedures when he swallowed a one-inch ball. The incident caused a rupture in his esophagus, resulting in permanent digestive injuries necessitating a permanent G-Tube.

Defendants have offered combined settlement in the amount of \$929,999.98. There are deductions as follows: (1) \$99,787.59 for medical expenses to Medi-Cal; (2) \$17,783.54 for costs; (3) \$10,000 for expenses for the Special Needs Trust; and (4) \$362,945.74 for attorneys' fees (39% of the recovery). The remainder is therefore \$439,482.11, to be placed in his Special Needs Trust.

The parties additionally seek findings relating to the need for and establishment of the Special Needs Trust.

The Court notes that the settlement is substantial—although the damages alleged were certainly substantial as well. The Court is carefully examining the attorneys' fees. The Court acknowledges that the fee agreement permitted fees of 45% of the recovery once litigation has commenced and that the requested amount represents a 6% reduction from that contract. In the Court's experience, 45% is a very high amount for such an early trigger. On the other hand, this case is not new and counsel did have to do some litigation, including taking four depositions, engaging consulting experts, and reviewing medical experts. The Court believes that the fee percentage of 45% would not be consistent with the criteria for a reasonable attorney's fee under CRC 7.955(b). In this particular case, given the strong result, the work done, and the reduction to below 40%, the Court finds that the fee is reasonable.

Ruling

The Court finds that (1) Jose Reynoso has a disability that substantially impairs his ability to provide for his own care or custody and constitutes a substantial handicap; (2) Jose Reynoso is likely to have special needs that will not be met without this trust; and (3) the money being transferred to the trust does not exceed the amount that appears reasonably necessary to meet Jose Reynoso's special needs. The Court hereby establishes the Jose Reynoso Irrevocable Special Needs Trust. The Court authorizes and directs Ma. De Lourdes Hidalgo to execute the Jose Reynoso Irrevocable Special Needs Trust as guardian ad litem for Jose Reynoso and as trustee of the Jose Renoso Irrevocable Special Needs Trust.

After careful examination of the Petition, declarations, and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise lodged on December 17, 2025.

2. 9:00 AM CASE NUMBER: C24-02709
CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES**
FILED BY: YEFENAU, PAVEL
TENTATIVE RULING: